



Confederated Tribes and Bands
of the Yakama Nation

Established by the
Treaty of June 9, 1855

The Honorable Laura Swett, Chairman
The Honorable David Rosner, Commissioner

The Honorable Lindsay S. See, Commissioner
The Honorable Judy W. Chang, Commissioner

Federal Energy Regulatory Commission

888 First Street, NE
Washington, DC 20426

Re: Responding to the Advanced Notice of Proposed Rulemaking Regarding the Interconnection of Large Loads to Interstate Transmission Systems (Docket No. RM26-4-000)

Dear Chairman Swett,

I write on behalf of the Confederated Tribes and Bands of the Yakama Nation (“Yakama Nation”) regarding the *Advanced Notice of Proposed Rulemaking’s (ANOPR)* request for comment on the measures proposed in *Docket No. RM12-4-000*. We call upon the Commission to ensure that this rulemaking upholds, and does not infringe upon, our sovereignty and right to self-determination.

We are seeing rapid and unprecedented investment (including Tribal) in energy infrastructure and transmission infrastructure. These projects can increase the reliability and affordability of energy while also providing significant economic development capacity to the most neglected and underinvested communities across the country. As the market for large load facilities such as artificial intelligence data centers, Indian Gaming enterprises, and other industrial facilities continues to grow, the Yakama Nation is interested in participating in both the development and regulation of such facilities on and near Tribal lands.

As a sovereign government that is a market participant and governing entity with jurisdictional oversight with siting and permitting on our lands, it is imperative that this rulemaking will not infringing on Tribal sovereignty. The following comments underscore the importance of Tribal Consultation before any finalized rulemaking and address specific sections of the ANOPR that may affect Tribal Nations.

The Yakama Nation request that the Commission engage in the Tribal Consultation process required under 18 C.F.R. § 2.1c prior to issuing any final rule in this proceeding. The Commission is obligated to ensure that “[t]ribal concerns and interests are considered whenever the Commission’s actions or decisions have the potential to adversely affect Indian Tribes, Indian trust resources, or treaty rights”.¹ Additionally, the D.C. Circuit has made clear that the Commission’s trust responsibility requires it to account for Tribal concerns as early as practicable in its decision-making, including in interconnection and transmission processes that may affect Tribal lands, resources, or jurisdiction.²

¹ 18 C.F.R. § 2.1c(e)

² United Keetoowah Band of Cherokee Indians in Oklahoma v. FERC, 927 F.3d 543, 552 (D.C. Cir. 2019); see also FERC, Policy Statement on Consultation with Indian Tribes in Commission Proceedings, Docket No. PL21-1-000 (2021),



This obligation reflects both the Commission's trust responsibilities and the United States' unique Government-to-Government relationship with Tribal Nations. The proposed rule, which seeks to expedite the integration of large electrical loads such as data centers and industrial facilities into the broader grid, has the potential to directly affect Tribal lands, economies, and energy systems. Without early and meaningful consultation, it could inadvertently diminish Tribal sovereignty by advancing permitting and interconnection decisions that overlook Tribal jurisdiction and energy authority.

Accordingly, the Commission must therefore engage in consistent Government-to-Government Consultation before adopting such consequential reforms and ensure that this rulemaking fully upholds and respects the inherent sovereignty and right to self-determination of the Yakama Nation.

The implementation of any new reforms adopted through this rulemaking must also be guided by the United States' Trust and Treaty obligations to Tribal Nations.³ These obligations are not discretionary but legally binding commitments rooted in the Constitution, ratified treaties, federal statutes, and judicial precedent.⁴ As the Supreme Court has affirmed, the United States must adhere to the "highest fiduciary standards" when carrying out its trust responsibilities to Tribal Nations,⁵ a principle that applies fully to the Commission whose regulatory decisions directly affect Tribal lands, economies, and access to energy infrastructure.

The Yakama Nation requests the Commission to ensure that the implementation of the final rule includes comprehensive, formal, and early Government-to-Government Consultation. Consultation must occur before decisions are finalized, not after rules have been drafted that will affect Tribal Nations.⁶ It must be substantive, two-way, and outcome-oriented, designed to meaningfully shape the policies, timelines and technical procedures that will govern large-load interconnections and related transmission planning. This duty is firmly established under Executive Order 13175,⁷ the Department of Energy's 2023 Tribal Consultation Policy⁸, and FERC's 2021 update to its Tribal Policy Statement,⁹ which reaffirms the Commission's responsibility to engage in Consultation consistent with the federal Trust and Treaty responsibilities.

The Yakama Nation is a sovereign nation, not a stakeholder or the general public, we have the authority to make decisions regarding siting, permitting, and energy resource management on Tribal lands. Meaningful Consultation therefore requires that we receive timely access to draft rule language, relevant data, and implementation plans, and that FERC provide adequate technical assistance and capacity support to enable full participation.

³ *United States v. Mitchell*, 463 U.S. 206, 225 (1983).

⁴ U.S. Const. art. VI, cl. 2; *Worcester v. Georgia*, 31 U.S. (6 Pet.) 515 (1832); 25 U.S.C. § 5301 et seq. ⁵ *Seminole Nation v. United States*, 316 U.S. 286, 297 (1942).

⁶ *Executive Order No. 13,175*, 65 Fed. Reg. 67,249 (Nov. 9, 2000).

⁷ *Ibid.*

⁸ U.S. Department of Energy, *Department of Energy Tribal Consultation Policy* (2023).

⁹ FERC, *Policy Statement on Consultation with Indian Tribes in Commission Proceedings*, Docket No. AD03-12-000 (May 21, 2021)



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Further, the Commission's Trust responsibility extends to ensuring that the integration of large loads does not compromise Tribal access to reliable, affordable, and nondiscriminatory energy service, nor threaten the ecological or cultural resources protected by Treaty or reserved rights.¹⁰ As FERC transitions to new interconnection standards, it must not allow utilities or transmission providers to prioritize large industrial customers at the expense of Tribal reliability, energy affordability, or environmental protection.

The proposed rule could significantly affect Tribal lands by accelerating the siting of large-load facilities within or near Tribal jurisdictions. Without explicit enforceable safeguards, Tribal Nations may face increased strain on local energy infrastructure, higher service costs, and reduced reliability as utilities prioritize industrial interconnections. These impacts would undermine the Commission's federal Trust responsibilities and statutory obligations under the FPA to ensure just, reasonable, and non-discriminatory access to energy service for Tribal communities. The Commission must therefore ensure that large load integration on or adjacent to Tribal lands occurs only through meaningful, free, prior, and informed Tribal Consultation and engagement, consistent with Executive Order 13175 and the Department of Energy's Tribal Consultation policy.¹¹ Such Consultation must occur before any approval of large load interconnections, include data transparency and cost-allocation safeguards, and provide mechanisms for Tribal review and mitigation of infrastructure impacts. Embedding these protections will uphold Tribal energy sovereignty, prevent disproportionate burdens on Tribal communities, and align this rulemaking with the Commission's obligation to promote fair and non-discriminatory access to reliable energy service.

The Yakama Nation respectfully requests a formal implementation framework that defines a Government-to-Government Consultation schedule prior to final rule issuance.

Please contact Philip Rigdon, Superintendent of DNR if you have any questions regarding this letter. He can be reached at Philip_rigdon@yakama.com or 509-865-5121 ext. 4655.

Sincerely,

Gerald Lewis, Chairman
Confederated Tribes and Bands of the Yakama Nation

¹⁰ *Navajo Nation v. U.S. Department of the Interior*, 26 F.4th 794, 804 (9th Cir. 2022).

¹¹ DOE, *Tribal Consultation Policy* (2023); E.O. 13175.